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Date
10-06-2010

Reference 119 435 a/nsp	Application No./Patent No. 07001215.8 - 2112 / 1849473
Applicant/Proprietor Livzon Pharmaceutical Group Inc.	

BRIEF COMMUNICATION

- Subject:
- ☐ Your letter of
 - ☐ Our telephone conversation of
 - ☒ Communication under Rule 71(3) EPC dated
 - ☒ Resumption of substantive examination

The communication under Rule 71(3) EPC is set aside. In accordance with Guidelines C-VI, 14.5 substantive examination is to be resumed because

- ☐ one of the exceptions of Guidelines C-VI, 14.4.1 applies.
- ☒ the Examining Division has become aware of circumstances which are such as to render non-patentable the subject-matter claimed (Guidelines C-VI, 4.11), e.g. following observations by third parties under Article 115 EPC or because the applicant has filed further prior art.
- ☐ the communication under Rule 71(3) EPC was the first communication from the Examining Division and the applicant has responded by filing amendments which are not allowable.

The requirement of Rule 71(4) EPC concerning the filing of translations of the claims and the payment of fees no longer applies.

For the Examining Division





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Application No. 07 001 215.8 - 2112	Ref. 119 435 a/nsp	Date 25.02.2010
Applicant Livzon Pharmaceutical Group Inc.		

Communication under Rule 71(3) EPC

You are informed that the Examining Division intends to grant a European patent on the basis of the above application with the text and drawings as indicated below:

In the text for the Contracting States:

AT BE BG CH CY CZ DE DK EE ES FI FR GB GR HU IE IS IT LI LT LU LV MC NL PL PT RO SE SI SK TR

Description, Pages

1, 5-6, 9-17	as originally filed			
3, 3a, 4	received on	01-10-2007	with letter of	01-10-2007
2, 7-8	received on	06-11-2009	with letter of	06-11-2009

Claims, Numbers

1-18	received on	06-11-2009	with letter of	06-11-2009
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Drawings, Sheets

1/2-2/2	as originally filed
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A copy of the relevant documents is enclosed